

		which the trial court can draw the conclusion that the plaintiff has a cause of action against the defendant”].) Moving party to give notice.
107	Liu vs. Tran 25-01487015	Motion for Undertaking Defendant, Brittany R. Eichin, moves for an order requiring Plaintiff, Shu Xia Liu, to file an undertaking pursuant to Code of Civil Procedure section 1030, to secure Defendant’s anticipated costs in the estimated total amount of \$35,525, or alternatively, any other sum deemed reasonable by the court. The Motion for Undertaking is DENIED. Defendant’s Request for Judicial Notice. The Court DENIES Defendant’s request for judicial notice as to an Orange County Sheriff’s Department Police Report, dated June 26, 2025. Defendant requests that the Court take judicial notice of an Orange County Sheriff’s Department Police Report, dated June 26, 2025 (Ex. 1) pursuant to Evidence Code section 452(d) and (h). The recommendation is to DENY the request for judicial notice. A police report is not a court record (Evidence Code section 452(d)), and the contents of the police report do not contain facts that are not reasonably subject to dispute and are capable of immediate and accurate determination by resort to sources of reasonably indisputable accuracy (Evidence Code section 452(h)). A police report is not the proper subject of judicial notice. (See In re Marriage of Brewster & Clevenger (2020) 45 Cal.App.5th 481, 498 [finding a police report “is not subject to either mandatory or discretionary judicial notice under Evidence Code sections 451 or 452; it is not party of a court record under section 452, subdivision (d), nor is it

		a record of the ‘[o]fficial acts of the legislative, executive, [or] judicial departments’ of the state under section 452, subdivision (c)”]; People v. Jones (1997) 15 Cal.4th 119, 171, fn.17 overruled on other grounds in People v. Hill (1998) 17 Cal.4th 800 [declining “to take judicial notice of the truth or accuracy of an entry in a police report, because such a report is reasonably subject to dispute” in response to request to take judicial notice of a police report under Evidence Code section 452(h)].) There is clearly a factual dispute as to Defendant’s alleged conduct in this action, such that the contents of the police report is reasonably subject to dispute. Merits “When the plaintiff in an action or special proceeding resides out of the state, or is a foreign corporation, the defendant may at any time apply to the court by noticed motion for an order requiring the plaintiff to file an undertaking to secure an award of costs and attorney’s fees which may be awarded in the action or special proceeding. For the purposes of this section, ‘attorney’s fees’ means reasonable attorney’s fees a party may be authorized to recover by a statute apart from this section or by contract.” (Code Civ. Proc. § 1030(a).) “The motion shall be made on the grounds that the plaintiff resides out of the state or is a foreign corporation and that there is a reasonable possibility that the moving defendant will obtain judgment in the action or special proceeding.” (Code Civ. Proc. § 1030(b).) “The motion shall be accompanied by an affidavit in support of the grounds for the motion and by a memorandum of points and authorities. The affidavit shall set forth the nature and amount of the costs and attorney’s fees the defendant has incurred and expects to incur by the conclusion of the action or special proceeding.” (Ibid.)
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The purpose of the statute is to (1) enable a California resident sued by an out-of-state resident to secure costs in light of the difficulty of enforcing a judgment for costs against a person who is not within this court's jurisdiction and (2) prevent out-of-state residents from filing frivolous lawsuits against California residents. (Alshafie v. Lallande (2009) 171 Cal.App.4th 421, 428; Yao v. Superior Court (2002) 104 Cal.App.4th 327, 331.)

As to the first requirement, the phrase “resides out of the state” refers to actual residence.” (Myers v. Carter (1960) 178 Cal.App.2d 622, 626.) For purposes of applying Code of Civil Procedure section 1030, residency is determined at the time of the motion. (Id. at pp. 626-27.)

Here, there is no dispute that Plaintiff is a Chinese citizen who is currently in custody in the People’s Republic of China. (Ex. A to Declaration of Pamela Albanese (“Albanese Decl.”), Second Amended Complaint (“SAC”), ¶ 1; Ex. B to Albanese Decl., Case Management Statement, ¶ 6.)

As to the second requirement, a defendant is not required to show that there was no possibility that the defendant could win at trial, but only that it was reasonably possible that the defendant would win. (See Code Civ. Proc. § 1030(b); Baltayan v. Estate of Getemyan (2001) 90 Cal. App. 4th 1427, 1433 [fact that defendant prevailed in judicial arbitration established “reasonable possibility” it would prevail at trial].)

Defendant contends that no case has specifically defined the term “reasonable possibility” and asserts that the burden is easier to meet than a plaintiff’s burden of defeating an anti-SLAPP motion under Code of Civil Procedure section 425.16(b), which requires a plaintiff to show a “probability” of prevailing, and easier to meet than the burden under Civil Code section 1714.10 which uses a “reasonable probability”

		standard. Defendant appears to distinguish the burdens under these sections as it refers to a “probability” as opposed to a “possibility.” Plaintiff cites to a federal case, Johnson v. Altamirano (S.D. Cal. 2019) 418 F.Supp.3d 530 which used the terms “reasonable possibility” and “reasonably probability” interchangeably, without any analysis, but stated, “Section 1030(b)’s ‘reasonable possibility’ standard ‘is relatively low’ [Citation.] But it ‘is not so low as to be non-existent.’ [Citation.]” (Johnson v. Altamirano (S.D. Cal. 2019) 418 F.Supp.3d 530, 564.) “District courts should not ‘read section 1030 so broadly as to require every out-of-state litigant who brings a non-frivolous suit in California to post a bond simply because there is a reasonable chance the defendant may prevail.’ [Citation.]” (Ibid.) “[D]ecisions of federal courts interpreting California law are persuasive but not binding.” (Mesler v. Bragg Management Co. (1985) 39 Cal.3d 290, 299.) Additionally, the statutory hearing procedure contemplates the presentation of declarations and other documentary evidence, along with the opportunity for both counsels to be present and the opportunity to be heard. (Shannon v. Sims Serv. Ctr. (1985) 164 Cal.App.3d 907, 913 [finding defendant carried its burden of proof of showing, by declaration, a reasonable possibility of prevailing by proper reference to the results of an earlier arbitration hearing].) Based on the foregoing, “reasonable possibility” as that term is used in Code of Civil Procedure section 1030(b) is a low standard but requires some showing based on evidence. Here, to establish a reasonable probability of prevailing on the one cause of action asserted against Defendant for aiding and abetting forgery, Defendant relies solely on the contents of an Orange County Sheriff’s
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	Department Police Report, dated June 26, 2025, of which Defendant requests judicial notice. As discussed above, the police report is not the proper subject of judicial notice as requested by Defendant, as the contents of the police report is reasonably subject to dispute. Nor is it otherwise admissible. In reply, Defendant contends that case law establishes that a police report is subject to judicial notice, citing to <i>People v. Hall</i> (2019) 39 Cal.App.5th 831 and <i>Coe v. City of San Diego</i> (2016) 3 Cal.App.5th 772. These cases do not involve whether a trial court properly took judicial notice of the contents of a police report, but rather whether statements in a police report were properly admitted. Defendant did not seek to admit the police report, but even if she did, Defendant does not meet the standard of admissibility under the official records exception. In <i>People v. Hall</i> (2019) 39 Cal.App.5th 831, the Court of Appeal found that an arrest report’s factual statements satisfied the requirements of the official records exception to the hearsay rule under Evidence Code section 1280 such that factual statements in the arrest report were properly admitted, but this was based on the fact that the report was prepared by and within the scope of the duties of the arresting deputies, and “[t]he facts stated in the report were based on their personal observations” such that the trustworthiness requirement was established as this showed that the written report was based upon the observations of public employees who have a duty to observe the facts and record them correctly. (Id. at p. 843.) In contrast, here, Defendant seeks judicial notice of an incident report, not an arrest report, and the facts of which Defendant seeks judicial notice are statements, not by any police officer, but by Defendant herself, such that the trustworthiness requirement of Evidence Code section 1280 would not be met, and Defendant’s statements would not be admissible.
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		Defendant also contends that the Court of Appeal in <i>Coe v. City of San Diego</i> (2016) 3 Cal.App.5th 772 found that police reports are admissible under the official records exception. <i>Coe</i> is similarly distinguishable. <i>Coe</i> involved reports of police officers and detectives who inspected the plaintiff's business and a finding that the police report satisfied the trustworthiness requirement where it is based on the reporting officer's firsthand observations. (<i>Coe v. City of San Diego</i> (2016) 3 Cal.App.5th 772, 787-788.) The police report at issue here does not involve an officer's firsthand observations but merely summarizes what Defendant told the officer. Therefore, the police report here would not meet the requirements for admissibility under the official records exception to the hearsay rule. Based on the foregoing, Defendant makes no showing of a reasonable probability of prevailing and fails to meet her burden to show a reasonable probability of prevailing. Plaintiff to give notice.
108	City of Buena Park, a California Municipal Corporation vs. Jung 24-01423223	1. Motion for Receiver Final Accounting Superior Court Receiver Kevin Singer ("Receiver") moves for order (1) approving and settling the Receiver's final report and accounting, (2) approving final compensation and reimbursement of expenses, (3) approving the Receiver's proposed distribution of funds; (4) exonerating all bonds, (5) terminating the Receivership appointment, and (6) retaining jurisdiction regarding this Receivership appointment.